

CITY OF CHEYENNE
CONTRACT MODIFICATION

<u>Contract Modification:</u>	# 3
<u>Project:</u>	West Edge Engineering Design Services for the Civic Center Commons Project
<u>Project Number:</u>	Contract # 6498
<u>Contractor:</u>	DHM Design Corporation
<u>Date Prepared:</u>	March 27, 2018

The above-referenced contract is modified as set forth in the following, and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

This contract modification provides for DHM Design Corporation ("DHM") to pay for its sub-contractor, San Engineering LLC. ("San") to provide structural engineering design and construction administration tasks for the Civic Center Commons (CCC) Project. This work was noted in the original DHM contract Exhibit C work task under "Proposal Notes and Omissions" as additional to the proposed work scope and budget and, at that time, the amount was unknown. We now have the work scope and \$20,587.50 cost estimate from San Engineering, the structural steel consultant, and are seeking this contract modification to pay for those services. This San Engineering work scope and budget is detailed in Exhibit A, attached hereto and incorporated herein as if fully set forth.

This contract modification also reimburses the DHM Contract Administration Task 4 for the \$116,277.00 that was moved from Task 4 to the Tasks 1 and 2, Design, work by the previous two contract modifications approved by the Governing Body. This contract modification reimburses Task 4 to its original budget amount of \$327,200. The Task 4, Construction Administration, exact scope of the work is detailed in Exhibit B, attached hereto and incorporated herein as if fully set forth.

This contract modification also pays DHM Design to prepare for the City's use both hard copy and digital graphic images of the CCC Project as it will appear per the 100% construction drawings. This work scope and \$13,680 budget is detailed in Exhibit C, attached hereto and incorporated herein as if fully set forth.

II. New Contract Items

San Engineering shall provide structural engineering design and construction management services for the Civic Center Commons Project. These services are more particularly described in Exhibit A.

DHM Design shall provide graphic images of the flood control and park elements of the CCC Project as they are proposed in the 100% construction drawings. The City will use these images for public information in various media formats. These services are more particularly described in Exhibit C.

III. Schedule

This contract modification does not impact the overall project schedule.

IV. Summary

Original Contract Amount	\$754,937.00
Previous Modifications	\$0.00
Contract Amount Prior to this Modification.....	\$754,937.00
This Modification	\$150,544.50
New Contract Amount	\$905,481.50

[SIGNATURE PAGE FOLLOWS]

V. Approvals

Date: _____

Mayor, Marian J. Orr

ATTEST: City Clerk, Carol Intlekofer

Date: _____

Recommended Approval by City Project Mgr.

Date: _____

DHM Design Corporation

Attachments:

1. Exhibit A: San Engineering work scope and cost estimate
2. Exhibit B: DHM original contract Task 4 work scope and budget
3. Exhibit C: DHM Park graphics work scope and budget

EXHIBIT A

DHM and San Engineering Scope of Services attached to Contract Modification Request



San Engineering LLC

Civil and Structural Engineering

Invoice

1150 W. Littleton Blvd.,
Suite 200
Littleton, CO 80120

Date	Invoice #
12/4/2017	1728

Bill To
DHM Design Matt Whipple 900 S. Broadway, Suite 300 Denver, CO 80209

P.O. No.	Terms	Project
		Civic Center Commons Park

Quantity	Description	Rate	Amount
13	Structural Engineering Mgr. - Coordination, design, detailing of sheet pile walls, outlet structures, retaining walls, and site structures	130.00	1,690.00
18	Sr. Project Engineer - Structural design calculations for sheet pile walls, outlet structures, retaining walls, and site structures	120.00	2,160.00
37.5	Sr. CAD Drafter - detailing of sheet pile walls, outlet structures, retaining walls, and site structures	105.00	3,937.50
		Total	\$7,787.50



San Engineering LLC
Civil and Structural Engineering

Invoice

1150 W. Littleton Blvd.,
Suite 200
Littleton, CO 80120

Date	Invoice #
2/5/2018	1794

Bill To
DHM Design Matt Whipple 900 S. Broadway, Suite 300 Denver, CO 80209

P.O. No.	Terms	Project
		Civic Center Commons Park

Quantity	Description	Rate	Amount
9	Structural Engineering Mgr. - Coordination, design, detailing of sheet pile walls, outlet structures, retaining walls, and site structures	130.00	1,170.00
0	Sr. Project Engineer - Design calculations for sheet pile walls, outlet structures, retaining walls, and site structures	120.00	0.00
4	Sr. CAD Drafter - Detailing of sheet pile walls, outlet structures, retaining walls, and site structures	105.00	420.00
		Total	\$1,590.00

**Manhours and Fee Estimate
Civic Center Commons - Cheyenne, WY
Structural Engineering**

WORK ITEM	Structural Eng. Mer	Senior Proj. Eng.	Staff Engineer	Sr. CAD Drafter	Sub- Consultant	Direct Expense	Totals
	\$130	\$120	\$115	\$105	L.S.	L.S.	
Cast-in-place Concrete Structures							
Reinforcing Shop Drawing / Mix Submittal Reviews	4.0	16.0					\$2,440
Subtotal	4.0	16.0					\$2,440
Sheet Piles / Precast Caps							
Shop Drawing Submittal Review	4.0	6.0					\$1,240
Subtotal	4.0	6.0					\$1,240
Ornamental Fence / Other Misc. Structural Features							
Shop Drawing Submittal Review	3.0	12.0					\$1,830
Subtotal	3.0	12.0					\$1,830
Site Visits							
(5) Visits Assumed	40.0					\$500	\$5,700
Subtotal	40.0					\$500.0	\$5,700
Total:	51	34				\$500	\$11,210

EXHIBIT B

*Original DHM and BenchMark Engineering Construction Administration Services Proposal as
attached to Contract Modification*

DHM DESIGN



Response to Request for Proposals for

West Edge District Civic Center Commons

No. RFP-5-16

February 26, 2016 | Cheyenne, Wyoming

EXHIBIT

B

West Edge District Civic Center Commons

Cheyenne, Wyoming
Work Plan and Professional Fees

Prepared By: DHM Design
March 21, 2016

DESCRIPTION OF SERVICES

Landscape Architect				Civil Engineer		Geotech & Environmental		Irrigation		Electrical Engineer	
DHM Design				Benchmark Eng.		Terracon		Irrigation Eng.		Clanton & Associates	
Principal-in-Charge	Associate Principal / Project Manager	Associate / Senior Designer	Designer	Lead Engineer		Lead Engineer		Lead Engineer		Lead Engineer	
\$ 150	\$ 120	\$ 90	\$ 75	Lump Sum		Lump Sum		Lump Sum		Lump Sum	

Task 1: Preliminary Design Phase

BACK MAP COLLECTION AND PROJECT STARTUP

Project Start Up:

- Assemble base map info & review background information
- Provide site survey that will serve as basis for design

Staff Meeting #1: Project Kickoff Meeting:

- Team meeting/site visit - All Consultants
- Internal Design Team Coordination Meetings
- Kick-off meeting notes/follow-up coordination
- Coordinate with project team and City Staff to discuss project milestone dates
- Coordinate with project team and City Staff to discuss project review schedule

Civil Engineering: (Surveying & Utility Locates)

- Field Survey: Topographic survey of streets, utilities, property and boundary. Control points established as necessary, referenced to the City Control Network and vertical datum NAVD1988
- Geotechnical boring survey
- Potholing & Utility Locates

Prepare project schedule for team coordination

	10.00	30.00									
2.00	5.00										
	12.00										
	4.00		8.00								
	4.00										
				Lump Sum	\$98,884.00						
	18.00										

SCHEMATIC DESIGN

Staff Meeting #2: Identify and Evaluate Alternatives:

- Determine Park Programming - Staff Assistance
- Set Objectives/Criteria for Storm Water Management
- Discuss maintenance concerns City Parks Staff and Public Works
- Propose series of preliminary BMPs

Prepare preliminary sketch concepts for park grading and general layout of materials

- Conceptual layout and materials
- Hand drawn conceptual grading plan
- Wall and grading sections
- Enlargement of key areas

Provide schematic level cost estimates for each concept

Submittal: Preliminary Concepts

Staff Meeting #3: City Staff Review of Concepts - Prior to Open House #1

- Staff to review concepts prior to open house to ensure City Staff approves of alternatives presented to the Public

Open House Meeting Preparation

Public Open House #1:

- Coordinate public process with consultant team engaged in City's EPA Planning Grant
- Prepare presentation including preference boards for theming, materials and programmatic elements

2.00	4.00										
2.00											
2.00											
4.00	12.00	8.00									
8.00	12.00	16.00	32.00								
2.00	4.00	12.00	20.00								
	1.00	4.00	8.00								
8.00	8.00	16.00	24.00								
1.00	2.00	24.00	12.00								
	6.00	8.00									
1.00	4.00	16.00									
2.00	6.00										
	2.00	16.00	18.00								

- Assemble and refine preferred plan based on City Staff and Public input
Submittal: Revised Concepts

Staff Meeting #4: City Staff Review of Concepts - Prior to Open House #2

- ### Open House Meeting Preparation

Public Open House #2:

- Assemble and refine preferred plan based on City Staff and Public Input**

City Council Meeting

- Meeting preparation, image boards, meeting attendance and preparation

Submit to: Final Master Plan

- Floating event date (Super Day, Warehouse 21 Event, etc)

Staff Meeting #3: City Staff Review of Public Process

- Meet with City Staff to determine final direction for the park master plan

Coordinate final Stormwater management system regarding surface and subsurface components with the entire design team

Environmental Services:

- Provide rough recommended phasing options for alternatives

[illegible]

DESIGN DEVELOPMENT AND CONSTRUCTION DOCUMENTS

Prepare preliminary plan package including, but not limited to:

- Coordinate Soil Management Plans & Soils Profiles - Geotech Report**

Civil Engineering:

- Geotechnical Engineer:**

- Soil Management Plans & Soil Profiles - Geotech Report

- 1997, 1998, 1999, 2000, 2001, 2002, 2003, 2004, 2005, 2006, 2007, 2008, 2009, 2010, 2011, 2012, 2013, 2014, 2015, 2016, 2017, 2018, 2019, 2020, 2021, 2022, 2023, 2024, 2025, 2026, 2027, 2028, 2029, 2030, 2031, 2032, 2033, 2034, 2035, 2036, 2037, 2038, 2039, 2040, 2041, 2042, 2043, 2044, 2045, 2046, 2047, 2048, 2049, 2050, 2051, 2052, 2053, 2054, 2055, 2056, 2057, 2058, 2059, 2060, 2061, 2062, 2063, 2064, 2065, 2066, 2067, 2068, 2069, 2070, 2071, 2072, 2073, 2074, 2075, 2076, 2077, 2078, 2079, 2080, 2081, 2082, 2083, 2084, 2085, 2086, 2087, 2088, 2089, 2090, 2091, 2092, 2093, 2094, 2095, 2096, 2097, 2098, 2099, 2100, 2101, 2102, 2103, 2104, 2105, 2106, 2107, 2108, 2109, 2110, 2111, 2112, 2113, 2114, 2115, 2116, 2117, 2118, 2119, 2120, 2121, 2122, 2123, 2124, 2125, 2126, 2127, 2128, 2129, 2130, 2131, 2132, 2133, 2134, 2135, 2136, 2137, 2138, 2139, 2140, 2141, 2142, 2143, 2144, 2145, 2146, 2147, 2148, 2149, 2150, 2151, 2152, 2153, 2154, 2155, 2156, 2157, 2158, 2159, 2160, 2161, 2162, 2163, 2164, 2165, 2166, 2167, 2168, 2169, 2170, 2171, 2172, 2173, 2174, 2175, 2176, 2177, 2178, 2179, 2180, 2181, 2182, 2183, 2184, 2185, 2186, 2187, 2188, 2189, 2190, 2191, 2192, 2193, 2194, 2195, 2196, 2197, 2198, 2199, 2200, 2201, 2202, 2203, 2204, 2205, 2206, 2207, 2208, 2209, 2210, 2211, 2212, 2213, 2214, 2215, 2216, 2217, 2218, 2219, 2220, 2221, 2222, 2223, 2224, 2225, 2226, 2227, 2228, 2229, 2230, 2231, 2232, 2233, 2234, 2235, 2236, 2237, 2238, 2239, 2240, 2241, 2242, 2243, 2244, 2245, 2246, 2247, 2248, 2249, 2250, 2251, 2252, 2253, 2254, 2255, 2256, 2257, 2258, 2259, 2260, 2261, 2262, 2263, 2264, 2265, 2266, 2267, 2268, 2269, 2270, 2271, 2272, 2273, 2274, 2275, 2276, 2277, 2278, 2279, 2280, 2281, 2282, 2283, 2284, 2285, 2286, 2287, 2288, 2289, 2290, 2291, 2292, 2293, 2294, 2295, 2296, 2297, 2298, 2299, 2300, 2301, 2302, 2303, 2304, 2305, 2306, 2307, 2308, 2309, 2310, 2311, 2312, 2313, 2314, 2315, 2316, 2317, 2318, 2319, 2320, 2321, 2322, 2323, 2324, 2325, 2326, 2327, 2328, 2329, 2330, 2331, 2332, 2333, 2334, 2335, 2336, 2337, 2338, 2339, 2340, 2341, 2342, 2343, 2344, 2345, 2346, 2347, 2348, 2349, 2350, 2351, 2352, 2353, 2354, 2355, 2356, 2357, 2358, 2359, 2360, 2361, 2362, 2363, 2364, 2365, 2366, 2367, 2368, 2369, 2370, 2371, 2372, 2373, 2374, 2375, 2376, 2377, 2378, 2379, 2380, 2381, 2382, 2383, 2384, 2385, 2386, 2387, 2388, 2389, 2390, 2391, 2392, 2393, 2394, 2395, 2396, 2397, 2398, 2399, 2400, 2401, 2402, 2403, 2404, 2405, 2406, 2407, 2408, 2409, 2410, 2411, 2412, 2413, 2414, 2415, 2416, 2417, 2418, 2419, 2420, 2421, 2422, 2423, 2424, 2425, 2426, 2427, 2428, 2429, 2430, 2431, 2432, 2433, 2434, 2435, 2436, 2437, 2438, 2439, 2440, 2441, 2442, 2443, 2444, 2445, 2446, 2447, 2448, 2449, 2450, 2451, 2452, 2453, 2454, 2455, 2456, 2457, 2458, 2459, 2460, 2461, 2462, 2463, 2464, 2465, 2466, 2467, 2468, 2469, 2470, 2471, 2472, 2473, 2474, 2475, 2476, 2477, 2478, 2479, 2480, 2481, 2482, 2483, 2484, 2485, 2486, 2487, 2488, 2489, 2490, 2491, 2492, 2493, 2494, 2495, 2496, 2497, 2498, 2499, 2500, 2501, 2502, 2503, 2504, 2505, 2506, 2507, 2508, 2509, 2510, 2511, 2512, 2513, 2514, 2515, 2516, 2517, 2518, 2519, 2520, 2521, 2522, 2523, 2524, 2525, 2526, 2527, 2528, 2529, 2530, 2531, 2532, 2533, 2534, 2535, 2536, 2537, 2538, 2539, 2540, 2541, 2542, 2543, 2544, 2545, 2546, 2547, 2548, 2549, 2550, 2551, 2552, 2553, 2554, 2555, 2556, 2557, 2558, 2559, 2560, 2561, 2562, 2563, 2564, 2565, 2566, 2567, 2568, 2569, 2570, 2571, 2572, 2573, 2574, 2575, 2576, 2577, 2578, 2579, 2580, 2581, 2582, 2583, 2584, 2585, 2586, 2587, 2588, 2589, 2590, 2591, 2592, 2593, 2594, 2595, 2596, 2597, 2598, 2599, 2600, 2601, 2602, 2603, 2604, 2605, 2606, 2607, 2608, 2609, 2610, 2611, 2612, 2613, 2614, 2615, 2616, 2617, 2618, 2619, 2620, 2621, 2622, 2623, 2624, 2625, 2626, 2627, 2628, 2629, 2630, 2631, 2632, 2633, 2634, 2635, 2636, 2637, 2638, 2639, 2640, 2641, 2642, 2643, 2644, 2645, 2646, 2647, 2648, 2649, 2650, 2651, 2652, 2653, 2654, 2655, 2656, 2657, 2658, 2659, 2660, 2661, 2662, 2663, 2664, 2665, 2666, 2667, 2668, 2669, 2670, 2671, 2672, 2673, 2674, 2675, 2676, 2677, 2678, 26

[illegible]

[illegible]

- ## TASK 2

113,182

Sub-Total:

\$ 1,500.00	\$ 14,840.00	\$ 10,080.00	\$ 13,200.00	\$ 50,812.00			\$ 2,210.00		\$ 8,740.00	
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Task 3: Bidding Phase

- ### TASK 3

15,410

Sub-Totals:

\$ -	\$ 1,200.00	\$ 2,100.00	\$ 800.00	\$ 8,470.00			\$ 440.00		\$ 2,540.00	
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Overall Project Design Sub-Total:	\$	427,737.00
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Task 4: Construction Administration (Engineering)

- ent: 3600 hours / Billed
-
- drawing submissions and

[illegible]

- Project Management - Billing, Review, Admin and Coordination**

	\$ 100,000.00		\$ 122,200.00			\$ 2,200.00		\$ 6,000.00	
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\$ 195,800 00

\$ 122,200.00

\$ 2,200.00

\$ 6,000.00

327,200.00

754,937.00

Proposal Notes and Omissions

2. Due to the undetermined programming for the site, we have not included fees for the following items within our proposal:

Our team has sub-consultants lined up to perform any of the work listed above.

2. Our team is available for additional meetings, beyond what is outlined, on a time and expense basis.

EXHIBIT C

DHM Design Scope of Service and Budget attached to Contract Modification

Change Order Request – Susana Montana

PROJECT NAME: Civic Center Commons
DATE: 03.26.2018
REVISED: ---

- **Updated plan graphic representing the final stormwater drainage basin design per final construction documents:**
 - This represents the area between Bent Avenue & O Neil Avenue and W 21st Street & W 20th Street – Otherwise known as the parking lot area across from the Cheyenne City Hall
 - This does not include the entire Civic Center Commons project area, as a whole.
 - Hand drawn plan graphic to the level of detail as the original plan graphic provided during the conceptual design phase
 - Color rendered plan – 24"x36" Plans
 - Matching style of original hand drawn plan graphic during conceptual design phase

 - Associate/Landscape Architect
 - 40 hrs @ \$90/hr. \$3,600.00

- **Updated 3D color renderings representing the final stormwater drainage basin design per final construction documents:**
 - This represents the area between Bent Avenue & O Neil Avenue and W 21st Street & W 20th Street – Otherwise known as the parking lot area across from the Cheyenne City Hall
 - This does not include the entire Civic Center Commons project area, as a whole.
 - 3D renderings depicting the level of detail as the original 3d rendering graphics provided during the conceptual design phase (12/2016)
 - Remodel the entire site plan from current CAD files
 - Views to match previously submitted renderings – 7 views (12/2016)
 - Lighting, planting, entourage as previously represented
 - Detailed color renderings – 24"x36" Image Boards
 - Matching style of original 3D renderings during conceptual design phase

 - 3D Designer/Landscape Architect
 - 84 hrs @ \$120/hr. \$10,080.00

- **Hard copy of (8) image boards (1 copy/each) included**

- **Overall total for updated plan graphic and 3D renderings: \$13,680.00**

As requested by Susana Montana (City of Cheyenne), DHM is able to provide (1) updated plan graphic and (7) 3D renderings of the FINAL approved plans for the Civic Center Commons stormwater basin. Plan graphic and renderings would encompass the area between Bent Avenue & O Neil Avenue and W 21st Street & W 20th Street,

DHM DESIGN

otherwise known as the parking lot area across from the Cheyenne City Hall, only. This does not include the stormwater drainage improvements up to and including the area at W 22nd Street and Pioneer Avenue or the area at West 19th Street and Bent Avenue.

Please note: All time is billed hourly to a top-set – Any hours not use will remain unbilled.

If you find the general scope and costs presented in this change order request acceptable, please sign and return as our authorization to proceed.

Approved by:

Signature: _____

Name: _____ Date: _____



A COMMUNITY OF CHOICE

Planning & Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282

MEMORANDUM

To: Mayor Marian J. Orr
City Councilmen

From: Susana Montana, Senior Planner

Date: March 27, 2018

Re: Change Order/ Contract Modification No.3 to Contract No. 6498 with DHM Design Corporation (DHM) for the Civic Center Commons (CCC) / West Edge Engineering Design Services entered into on May 11, 2016.

This change order request involves three separate requests to amend Contract No. 6498 to accomplish the following:

1. Reimburse DHM for structural engineering design and construction management work for the Civic Center Commons Project. This work was not included in the work scope and budget for this contract because the design of the stormwater drainage pond was as yet undetermined. The contract did have a section called Proposal Notes and Omissions which is highlighted on the last page of Exhibit B to the change order request. Item number 2 states "Due to the undetermined programming for the site, we have not included fees for the following items within our proposal: Structural Engineering—San Engineering...". The stormwater conveyance route has changed since the original design and budget estimate when the CCC project was connected to the 26th Street stormwater conveyance system. This caused the design to incorporate a subsurface drainage pond system which required greater structural steel design, materials and construction management. This work is needed to complete the CCC project. San Engineering's structural work requires a change order to include an additional **\$20,587.50** in the DHM contract. This amount would be funded 54% by the FEMA Pre-Disaster Mitigation Grant No. 14FEMA-CHE-PD-PDCH14, 22% would be reimbursed by the City's Wyoming State Loan & Investment Board (SLIB) Grant No. 15039 for the Capitol Basin Flood Control Project, and the remaining 24% would be funded by the 2012 6th Penny funds for West Edge Flood Control projects such as the Civic Center Commons Project.

2. Replenish the DHM Task 4 Construction Administration work to ensure that the construction of the project meets the approved designs. Two previous change orders approved by the Governing Body moved a combined **\$116,277** from Task 4, Construction Administration to Tasks 1 and 2, Design, to support design work associated with the addition of the 19th Street stormwater conveyance system, the 26th Street stormwater conveyance system, and design work associated with BOPU replacing older water and sewer lines along the CCC project conveyance route to the pond. This \$116,277 would be funded in similar proportions as noted above by the FEMA, SLIB and 2012 6th Penny funds.
3. A request for **\$13,680** for DHM Design to create and submit graphic images representing the final CCC project design, including the flood control features and the park improvements. These designs would reflect the 100% construction drawings for the CCC project.
4. The total contract modification request for the three change orders totals **\$150,544.50**.